FREE LEGAL GUIDE #3

Know Your Rights

When Arrested in India

Every right guaranteed under the Constitution
and Bharatiya Nagarik Suraksha Sanhita 2023

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Know Your Rights When Arrested in India

The Bharatiya Nagarik Suraksha Sanhita (BNSS) 2023 replaced the Code of Criminal Procedure (CrPC) 1973, bringing significant updates to how arrests are conducted and rights are protected. Whether you are being arrested or assisting a family member, this guide explains every right guaranteed under the BNSS and the Constitution of India.

> These rights are guaranteed by law — they cannot be waived by a police officer. Every violation you record strengthens your legal position.

CONSTITUTIONAL RIGHTS — ARTICLES 20, 21, 22

● Article 20 — Protection Against Self-Incrimination

No person accused of an offence can be compelled to be a witness against themselves. This means you have the right to remain silent and refuse to answer police questions. Only a magistrate-recorded confession is admissible as evidence — not a police-recorded one.

● Article 21 — Right to Life and Personal Liberty

No person shall be deprived of their life or personal liberty except according to procedure established by law. Illegal or arbitrary arrest violates this right. Any denial of bail without legal grounds violates Article 21.

● Article 22 — Protection Against Arbitrary Arrest

Three key protections: (1) right to be informed of grounds of arrest; (2) right to consult and be defended by a lawyer of choice; (3) production before a magistrate within 24 hours. Violation of any of these entitles the accused to immediate legal relief.

STATUTORY RIGHTS UNDER BNSS 2023

● Section 47 — Right to Know Grounds of Arrest

The arresting officer must prepare an arrest memo and inform the accused of the grounds of arrest at the time of arrest. The memo must be attested by a witness. The officer must bear a clearly visible, accurate name badge.

● Section 47(2) — Right to Inform a Relative or Friend

The arrested person can nominate one person — family, friend, or lawyer — to be informed of the arrest and the place of detention. This notification must happen without delay.

● Section 49 — Right Against Use of Unnecessary Force

Police may not use more force than is reasonably necessary to effect the arrest. Torture, unnecessary restraint, or any physical harm in custody is punishable under the BNS.

● Section 51 — Right to Medical Examination

The accused may request a medical examination by a registered medical officer at the time of arrest. If there is an existing injury, this is critical — get it recorded immediately.

● Section 57 — Right to Production Within 24 Hours

Police cannot detain you for more than 24 hours without producing you before a magistrate. The 24 hours excludes travel time. If this limit is exceeded, it is an illegal detention.

● Section 302 BNSS — Right to Legal Aid

Every accused person has the right to be represented by an advocate. If you cannot afford one, the State must provide a Legal Aid Advocate. You cannot be questioned or subjected to interrogation without your lawyer being present if you request one.

THE DK BASU GUIDELINES (NOW CODIFIED IN BNSS)

The Supreme Court's landmark DK Basu v. State of West Bengal (1997) guidelines have been largely codified in the BNSS. They require:

- Police must wear accurate name tags with designation during arrest and interrogation
- An arrest memo must be prepared and signed by a witness
- The family/friend nominated by the accused must be promptly informed
- The arrestee must be made aware of their right to be medically examined
- A copy of all documents — including the arrest memo — must be given to the arrested person
- The place of detention must be clearly communicated to the nominated person

RIGHTS IN POLICE CUSTODY VS JUDICIAL REMAND

Issue	Police Custody (Remand)	Judicial Custody (JC)
Duration	Max 15 days total (Section 187 BNSS)	Up to 60/90 days before default bail kicks in
Interrogation	Police may interrogate	Police need court permission to interrogate
Conditions	Lock-up / police station	Jail / sub-jail
Bail application	Can apply to magistrate	Can apply at any time
Lawyer access	Right to lawyer present during questioning	Regular access allowed

IF YOUR RIGHTS ARE VIOLATED

● Habeas Corpus Petition — Article 226 / 32

If detained illegally, a writ of habeas corpus can be filed before the Bombay High Court or Supreme Court demanding immediate release. This is one of the fastest legal remedies available.

● Complaint to Police Superintendent / DCP

If there is physical harm, file a written complaint with the District Superintendent of Police or Deputy Commissioner of Police. Keep a copy and note the time of submission.

● Complaint to State Human Rights Commission

The Maharashtra Human Rights Commission can investigate custodial violations. This is in addition to criminal remedies against the officer involved.

● Private Complaint / FIR Against Officer

A police officer who causes injury in custody is liable under Section 331 BNS (custodial torture). Your lawyer can file an FIR or a private complaint before the magistrate against the officer.

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